

Rebuilt Case Floor — Child Exploitation Through School-Authorized Visibility / Value Conversion

I. Governing Floor

Child exploitation = child exploitation.

Child exploitation does not disappear because the labor is visibility, branding, engagement, identity, image, likeness, reputation, attention, data, performance, public-facing participation, student voice, online presence, or market-facing self-presentation instead of factory work.

Child exploitation does not become education because the child is inside a school.

Commercialization does not become neutral because the institution calls it opportunity, career readiness, student voice, digital literacy, entrepreneurship, branding, marketing, innovation, portfolio development, leadership, public-facing participation, or future-ready skills.

The governing floor is:

Children = children.

School authority = school authority.

Child exploitation = child exploitation.

No institutional ownership = no lawful child pathway.

A child-exploitation pathway cannot be institutionally useful at authorization and institutionally orphaned when harm returns.

This is not downstream harm analysis.

This is not an accidental mishap.

This is a recurring pathway:

pathway historically known

→ **pathway named outward as harm**

→ **pathway renamed inward for institutional gain**

- **pathway naming refused when harm returns**
- **child consequence individualized**

That is pathway-avoidance naming.

The institution does not merely fail to name the pathway. It controls when the name appears, when the name disappears, and who is left carrying the consequence.

II. Scope Lock

This claim does not challenge ordinary digital instruction, ordinary technology use, general media literacy, civic participation, ordinary student speech, or educational technology as such.

The issue is narrower.

The issue is school-authorized conversion of child identity, image, likeness, visibility, reputation, attention, branding, engagement, public-facing participation, online presence, student voice, or market-facing self-presentation into institutional, stakeholder, instructional, reputational, economic, or pathway value after child-harm notice.

The pathway becomes legally relevant when school authority authorizes, credits, grades, promotes, normalizes, funds, supervises, requires, pressures, legitimizes, or stakeholder-shapes student participation in producing visibility, branding, engagement, reputation, public-facing identity, online presence, or market-facing self-presentation.

The issue is not technology.

The issue is child value conversion under school authority after notice.

III. Historical Child-Exploitation Floor

U.S. law and public policy have repeatedly recognized that children require special protection when adult systems convert child labor, time, image, likeness, performance, attention, visibility, identity, data, or participation into value.

The historical stack includes:

early factory and industrial child-labor protections
early child acting and child performer exploitation
early television commercialism and child advertising use
Coogan-style protection against adult extraction from child earnings
child performer protections recognizing that child image, labor, performance, and earnings
require adult-control limits
school commercialization and access-to-students concerns
pouring-rights contracts and school-based commercial access arrangements
student market research and access-to-children arrangements
child influencer protections recognizing online child visibility as value-producing participation
Illinois child-influencer protections recognizing that online child content, likeness, image, and
visibility can generate compensable value
platform litigation naming youth attention and engagement systems as child harm

This establishes the baseline:

Children can be exploited through labor, performance, visibility, image, likeness, attention, data, reputation, identity, public-facing participation, and market-facing self-presentation.

The modern school-authorized pathway is the next form:

child identity, image, reputation, visibility, branding, engagement, public-facing self-presentation, online presence, student voice, and market-facing identity converted into institutional, stakeholder, instructional, reputational, or economic value.

The form changed.

The floor did not.

IV. Notice / Authorization / Naming-Control Sequence

The pathway was not newly created by platforms or schools.

It was historically known, historically unequal, and historically left unowned when women and girls carried the harm.

Schools and public institutions later named attention, visibility, engagement, platform design, and youth exposure as child harm when seeking recovery, intervention, funding, regulation, or public legitimacy.

That naming created notice.

Naming the pathway outward creates notice.

Authorizing the same pathway function inward creates responsibility.

Refusing pathway ownership when harm returns exposes the route-around.

The controlling sequence is:

child-harm notice

→ **district awareness, adoption, reliance, or recognition**

→ **school authorization of the same attention / visibility / engagement / branding**

pathway function

→ **stakeholder conversion or opportunity framing**

→ **child exposure under school authority**

→ **harm returns**

→ **pathway naming refused**

→ **harm individualized as student choice, drama, digital footprint, reputation, bad judgment, peer conflict, bullying, discipline, or online behavior**

This is not ordinary institutional drift.

This is pathway-avoidance naming.

The pathway is named when naming benefits the institution.

The pathway is renamed when authorization benefits the institution.

The pathway is unnamed when ownership would burden the institution.

Lock:

Liability naming outward does not permit liability unnamings inward.

Harder:

A school cannot name a historically known child-harm pathway to recover from platforms, repackage the same pathway function as school-approved opportunity, suppress protective resistance to it, and then refuse ownership when foreseeable harm returns to the child.

V. Modern School-Authorized Child-Value Conversion

The modern pathway does not need to look like a factory, a stage set, a television commercial, a child influencer account, or an employment contract to function as child exploitation.

It forms when school authority converts the child into a value-producing surface through:

visibility
branding
engagement
image
likeness
identity
reputation
online presence
public-facing participation
student voice as institutional display
market-facing self-presentation
career-readiness visibility
entrepreneurship visibility
marketing participation
stakeholder-facing identity
school-approved public identity
portfolio identity
personal brand formation
creator-style participation

The child is moved from:

audience / user / consumer / advertising target

into:

**visibility producer / brand carrier / engagement generator / reputation asset /
public-facing identity / market-facing self-presentation / advertising surface**

The child did not become less vulnerable because the institution changed the child's role.

Protection had to travel with the role change.

Lock:

Children were recognized as vulnerable when advertised to.

The vulnerability did not disappear when school-authorized pathways trained them to become the advertisement.

VI. Compulsory Authority and Role Conversion

Because the pathway is authorized inside compulsory educational authority, the child is not situated as a free-market participant, ordinary platform user, independent actor, adult creator, or voluntary commercial participant.

The school supplies:

authority
legitimacy
pressure
access
supervision
implied safety
curricular framing
adult approval
peer normalization
stakeholder access
grade / credit / recommendation pressure
reduced protective caution

School placement changes the child's decision environment.

The child is not merely encountering a pathway.

The child is encountering a pathway under authority.

The district does not need to create the attention economy to own its decision to place children into attention-production pathways under school authority.

Lock:

Authorization is not platform creation. Authorization is the school-side act that converts a known-risk pathway function into school-approved child exposure.

VII. Developmental Capacity as the Hard Control Point

Developmental vulnerability makes adult-autonomy laundering unavailable.

Children do not become adult market actors because the institution calls the pathway opportunity, career readiness, digital literacy, branding, marketing, entrepreneurship, innovation, student voice, portfolio development, leadership, public-facing participation, or future-ready skills.

Where the pathway operates through attention, visibility, peer status, reward, reputation, image, audience response, branding, public-facing identity, comparison, or social validation, developmental capacity is central.

Those are the exact conditions where children are least able to evaluate:

- delayed consequences
- reputational permanence
- stakeholder benefit
- future social cost
- market-facing identity attachment
- image-based classification
- peer-status pressure
- audience dependency
- digital persistence
- long-term educational or economic consequence
- the difference between temporary opportunity and durable exposure

The institution cannot invoke child vulnerability when naming youth attention systems as harmful, then invoke adult autonomy when the same children are placed into visibility-producing pathways under school authority.

That is selective autonomy assignment.

For female children, the assignment becomes sharper because “autonomy” appears exactly when responsibility is being transferred:

- autonomous enough to carry reputation
- autonomous enough to absorb social punishment
- autonomous enough to be blamed for visibility
- autonomous enough to be treated as choosing consequence
- not protected enough to require pathway ownership before exposure

That is not autonomy.

That is abandonment.

Lock:

A female child does not become an adult risk-bearer because the institution needs somewhere to place the consequence of a pathway it authorized.

VIII. Suppression of Protective Instinct as Child-Exploitation Enablement

Protective instinct is not stigma.

Protective instinct is the warning signal.

Where a child, parent, guardian, or protective adult detects risk and responds with hesitation, refusal, discomfort, reporting, reputational concern, fear, boundary-setting, or protective caution, those signals cannot be reclassified as stigma, exclusion, overreaction, backwardness, obstruction, social defect, or failure to accept opportunity before safety analysis occurs.

Doing so converts self-protection into a punishable social position.

When the pathway involves children, that conversion is indefensible.

Children are not required to override their instincts, silence their fear, suppress discomfort, perform acceptance, or remain socially agreeable in order to be protected from exploitation.

Child exploitation does not become acceptable because the child's protective response makes adults, stakeholders, institutions, or peer systems uncomfortable.

Clean lock:

There is no legitimate governance interest in teaching children to mistrust the instincts that protect them from exploitation.

Harder:

Suppressing protective instinct clears the pathway for exploitation while later allowing the institution to claim no warning existed.

This is not a paperwork accident.

This is pathway clearance.

IX. Neutrality Collapse

Neutrality inside an already active harm pathway is not neutrality.

It is non-intervention inside a predictable child-value conversion system.

Where the operative mechanism is:

attention → labeling → reinforcement → classification → reputation → consequence

institutional non-intervention allows the dominant mechanism to control the child's position.

Neutrality assumes either no structured pathway or equal interpretive conditions.

Neither condition exists here.

The institution cannot remove protective friction, authorize visibility production, normalize stakeholder access, permit value conversion, and then call non-ownership neutral.

Neutrality becomes amplification when it operates inside a known pathway.

Lock:

Neutrality here is not neutral. It is amplification through non-intervention.

Harder:

Institutional neutrality becomes pathway preservation when the institution knows the pathway, authorizes the pathway, benefits from the pathway, and refuses to own the pathway when harm returns.

X. Child Endangerment Attachment

Child endangerment is not a downstream add-on.

It is the non-discretionary child-safety trigger that attaches when the pathway intersects with danger, coercion, sexualized targeting, exploitation, criminal conduct, mandated-reporting facts, safety-plan facts, or child-protection duties.

Once that trigger appears, the institution cannot contain the pathway as:

opportunity
neutrality
reputation
online behavior
peer conflict
ordinary discipline
student choice
digital footprint
police-only matter
social consequence
curriculum issue
family matter
platform issue

Mandated reporting is a floor, not a substitute for institutional ownership.

Police referral without pathway ownership is displacement.

Internal burial without pathway ownership is suppression.

Both protect the institution when neither protects the child.

Lock:

Child exploitation does not become invisible because the institution moved it sideways.

Harder:

When a child-harm pathway intersects with child-safety facts, the institution loses discretion to treat the pathway as merely curricular, reputational, social, or private.

XI. SSAIS / Pathway-Avoidance Naming

SSAIS evidence matters because it shows the school-side move in practice: child sexual harm is reported, but the pathway is avoided through minimization, displacement, or refusal to own the pattern.

In the Chapel Hill-Carrboro account, the reported sexual assault of a five-year-old was allegedly minimized as “tickling,” the harmed child was allegedly pressured toward removal rather than the assailant, and the family described later learning of multiple similar student-on-student sexual assaults with dismissive institutional responses.

The significance is not merely that harm occurred.

The significance is pathway-avoidance naming.

The reported conduct did not disappear.

The child-safety pathway did not disappear.

The institutional naming did.

The pathway was avoided by changing the interpretive label:

sexual assault / child-safety pathway

- “tickling”
- family demand problem
- placement problem
- school disruption problem
- individualized burden on the harmed child and family

That is the same structure.

When the pathway is named, institutional duties activate.

When the pathway is minimized, renamed, displaced, or fragmented, the institution preserves discretion.

SSAIS belongs in this case floor because it shows:

- a child cannot force seriousness classification
- a child cannot force correct pathway naming
- a child cannot force aggregation
- a child cannot force institutional ownership
- a family cannot force the district to say: “This harm returned through a pathway we allowed to remain unnamed.”

SSAIS proves the point:

Pathway avoidance naming is not theoretical.

It is the institutional move that keeps child harm from becoming institutional responsibility.

Lock:

A child cannot be made responsible for forcing the pathway name that adults avoid because naming it would activate ownership.

XII. Child Incapacity to Force Category Formation

A child cannot force the institutional category that would make her harm legible.

A child cannot make an adult safe to report to after that adult has already classified her as lying, dramatic, attention-seeking, unreliable, disruptive, difficult, or responsible for the consequence.

A child cannot force adults to classify appearance-based targeting, motive assignment, sexualized attention, peer reinforcement, visibility-based classification, reputational harm, or child-safety facts as serious.

A child cannot force the institution to see that she is being targeted through a protected pathway rather than ordinary drama, peer conflict, flirting, reputation, bullying, bad judgment, or online behavior.

A child cannot make the institution create the correct record.

If the adult routes the harm into the wrong category, the record forms wrong or not at all.

A child cannot link her experience to other female children's experiences when the school keeps each event isolated.

No aggregation means no visible pattern.

A child cannot force academia, OCR, schools, boards, courts, policymakers, or curriculum systems to stabilize a category around:

appearance → attention → motive assignment → classification → reputation → consequence

A child cannot force the institution to "know" what it prevented itself from recording.

That is the trap:

no classification → no records → no pattern → no knowledge → no duty

A child cannot force a school to build the safety model that should have existed before exposure.

A child cannot make the institution pause, restructure, narrow, condition, abate, or correct the pathway.

A child cannot force the district to say:

“This harm returned through a pathway we authorized.”

That is the abandonment point.

For that reason, absence of a stable record, research category, warning structure, aggregation trail, safety model, or institutional pathway name cannot be used against the child.

The absence is part of the institutional failure.

Clean formulation:

A child cannot report, classify, aggregate, research, regulate, or abate her own way out of an institutionally unnamed pathway.

Stronger:

The child cannot force the category, the record, the research, the safety model, the abatement, or the institutional ownership. That is why the burden cannot be placed on her.

Final lock:

A child cannot force the system to name the pathway that the system is built to keep unnamed.

XIII. Produced Absence / Aggregation Failure

No record does not mean no pathway.

No aggregation does not mean no pattern.

No pathway name does not mean no institutional control.

No safety model does not mean no duty.

No research category does not mean no harm.

Where the institution controlled naming, routing, classification, records, aggregation, reporting channels, safety-model creation, and ownership, later absence cannot be treated as natural absence.

It may be evidence of the failure itself.

Pathway-avoidance naming produces the absence it later uses as defense.

The institution cannot first prevent the category from forming, then argue the missing category proves no pathway existed.

Lock:

Produced absence cannot be used as proof of no duty where the institution controlled the naming conditions that produced the absence.

Harder:

No evidence is not neutral when the institution controlled the record, the category, the aggregation, and the pathway name.

XIV. Institutional Ownership as the Sealing Element

Institutional ownership is the sealing element.

Without ownership, every other layer can be routed away:

platform fault
police matter
peer conflict
student choice
family issue
digital footprint
social consequence
stakeholder opportunity
curriculum activity
career readiness
ordinary discipline
online behavior
no record

no pattern
no duty

Institutional ownership blocks the escape.

If the institution controlled access, authority, legitimacy, exposure, reporting, classification, records, safeguards, stakeholder entry, curriculum placement, pathway framing, or pathway continuation, then the institution does not get to vanish when harm returns.

The institution cannot say:

“We named the pathway when suing platforms.”

Then say:

“We renamed it as opportunity when placing children into it.”

Then say:

“We do not own it when the child carries the consequence.”

That is the route-around.

The controlling question is:

Who owns the pathway when harm returns?

If the answer is the child, the structure is exploitation.

If the answer is police only, the school has displaced ownership.

If the answer is peers, the school has individualized the pathway.

If the answer is platforms, the school has outsourced blame after authorizing exposure.

If the answer is no one, the institution created an unowned child-exploitation channel.

Lock:

No institutional ownership = no lawful child pathway.

Final seal:

No pathway ownership after harm returns = child exploitation by abandonment.

XV. Stakeholder Conversion and Benefit Allocation

Stakeholders are not a side issue.

They are part of the conversion mechanism.

Stakeholders may include vendors, advisory boards, curriculum partners, business partners, CTE partners, industry speakers, outside consultants, advocacy groups, communications offices, public-relations structures, platform-adjacent actors, career-readiness partners, entrepreneurship partners, marketing partners, and digital-media partners.

Stakeholders become relevant when they help convert a known-risk child-facing pathway into school-approved opportunity.

They may do this by shaping, sanitizing, legitimizing, delivering, benefiting from, expanding, or reframing attention / visibility / branding / engagement production as:

- digital literacy
- student voice
- career readiness
- entrepreneurship
- innovation
- future-ready skills
- marketing
- branding
- online presence
- creator economy
- business development
- portfolio development
- public-facing identity

The school supplies the authority.

The stakeholder may supply framing, materials, access, legitimacy, labor-market justification, audience connection, business rationale, or opportunity narrative.

The district cannot delegate ownership to stakeholders.

Vendor delivery does not convert school-authorized exposure back into outside conduct.

Stakeholder support does not erase district responsibility.

Value does not mean only direct money.

Value includes institutional legitimacy, program reputation, stakeholder access, public-relations benefit, pathway promotion, student labor, marketing content, engagement, visibility, branding, school-approved public identity, communications value, and market-facing pathway value.

The student may receive temporary or conditional benefit:

- grade
- credential
- portfolio artifact
- résumé item
- teacher approval
- short-term praise
- internship access
- recommendation access
- career-readiness credit
- school-sponsored visibility

The student may retain durable risk:

- reputational exposure
- digital permanence
- peer ranking
- social classification
- image-based judgment
- market-facing identity attachment
- future interpretive consequences
- loss of neutral student position
- public-facing identity pressure
- responsibility when harm returns

This creates a beneficiary / burden split.

Lock:

Reward is centralized. Cost is individualized.

Harder:

The district cannot centralize the benefit and individualize the burden.

XVI. Liability Laundering

Liability laundering occurs when the same pathway is assigned different meanings depending on institutional benefit.

The pathway is:

named as child harm when the institution seeks recovery
renamed as opportunity when the institution authorizes exposure
stakeholder-shaped when the pathway becomes useful
normalized as education when the child is placed into it
individualized as choice, drama, reputation, digital footprint, bad judgment, peer conflict, bullying, discipline, or online behavior when harm returns

This is not neutral.

This is selective pathway naming.

More precisely:

pathway-avoidance naming.

The institution cannot use one theory outward and the opposite theory inward.

It cannot treat children as vulnerable when the claim runs against platforms, then treat children as autonomous when the pathway runs through school authority.

It cannot centralize value and individualize consequence.

Lock:

Liability naming outward does not permit liability unnamings inward.

Harder:

A school cannot name a historically known child-harm pathway to recover from platforms, repackage the same pathway function as school-approved opportunity, suppress protective resistance to it, and then refuse ownership when foreseeable harm returns to the child.

XVII. Adult-Autonomy Assignment to Female Children at Harm Return

The general floor is child exploitation.

The female-child branch shows how the same child-exploitation pathway lands with sex-differentiated consequence.

Adult-autonomy assignment to female children is not neutral.

It appears when the institution needs to move responsibility away from itself.

For female children, the pathway foreseeably lands through:

- appearance ranking
- desirability scoring
- sexualized interpretation
- motive assignment
- reputation fixation
- image-based judgment
- body comparison
- digital permanence
- social punishment
- peer classification
- stigma transfer
- individualized blame
- “attention-seeking” classification
- reputation-as-character judgment

The institution authorizes the pathway as opportunity at the front end, then treats the female child as responsible for the meaning attached to her visibility when harm returns.

That is selective autonomy.

The female child is treated as a child when the institution controls access, curriculum, supervision, opportunity, participation, and compliance.

She is treated as an adult when the institution wants to assign consequences.

That switch is the liability tell.

Lock:

Adult autonomy cannot be selectively assigned to female children only when institutional ownership would otherwise attach.

Harder:

A female child does not become an adult risk-bearer because the institution needs somewhere to place the consequence of a pathway it authorized.

XVIII. Protected-Class Comparator and Institutional Silencing

This comparison does not challenge protections for LGBTQ students or any protected group.

The comparator is institutional, not adversarial.

Its purpose is to show that schools possess the capacity to name harm pathways, train staff, create reporting structures, preserve records, aggregate incidents, recognize stigma, intervene early, build child-protection architecture, and own child-safety pathways when a pathway is institutionally recognized.

The issue is selective non-application.

female-child protected-class signal

The question is why female children's protection is denied comparable naming, classification, aggregation, early intervention, and institutional ownership when the same child-protection architecture has already been proven available.

Where schools validate protective fear, stigma awareness, reporting, and early intervention in one child-protection context, but reclassify female children's protective fear, reputational concern, sexualized-risk awareness, parental caution, or boundary-setting as stigma, overreaction, backwardness, exclusion, or obstruction, the institution has converted a protection framework into a silencing device.

The legal comparator cannot be discredited by labeling the comparison bigotry.

No protected class is the adversary.

The institutional actor controlling naming, classification, records, intervention, and ownership is the adversary.

Hard lock:

A comparator showing institutional capacity is not bigotry. Calling it bigotry to prevent comparison is the silencing mechanism.

Final form:

This is not separate pathways.

This is one child-protection architecture applied selectively.

Female children are not outside that architecture.

Female children's protection is already owed.

XIX. Abatement

Abatement must address the pathway itself.

The pathway must be corrected, not merely the individual incident.

Abatement is not satisfied by:

digital citizenship
cyberbullying language
online-safety instruction
student handbook warnings
career-readiness framing
general media literacy
platform blame
student choice language
after-the-fact discipline
incident-only response
police displacement
internal burial
no-contact order
record closure

Corrective action must pause, narrow, condition, restructure, or own the pathway until the institution can answer:

What is the pathway?

What child-harm notice existed?

Who authorized it?

Which stakeholders shaped or benefited from it?
What child value is produced?
What risks attach?
What warnings are provided?
What alternatives exist?
What records form if harm returns?
Who owns the pathway when foreseeable consequences materialize?

Abatement means the pathway is corrected at the structural level.

It does not mean the district waits for individual harm, handles the incident, and leaves the pathway intact.

Lock:

The pathway must be corrected, not merely the individual incident.

Harder:

A child cannot abate an institutionally unnamed pathway. Only the institution that authorized, preserved, or benefited from the pathway can abate it.

XX. Final Integrated Floor

Adult systems have repeatedly converted children into value.

Law and public policy have repeatedly recognized that children require protection when child labor, time, image, likeness, performance, attention, visibility, identity, data, or participation becomes value.

The modern school-authorized pathway is the visibility / branding / engagement version of the same child-exploitation problem.

Developmental vulnerability makes adult-autonomy laundering invalid.

Protective instinct makes danger visible before the pathway matures.

Suppressing protective instinct clears the pathway for exploitation.

Child endangerment triggers non-discretionary child-safety duties when the pathway intersects danger, coercion, sexualized targeting, exploitation, criminal conduct, mandated-reporting facts, or child-safety conditions.

SSAIS shows how child harm can be minimized, renamed, displaced, or fragmented so the pathway is avoided rather than owned.

Pathway-avoidance naming occurs when the institution names the pathway for recovery, renames it for authorization, and refuses the pathway when harm returns.

For female children, the final transfer appears as adult-autonomy assignment at the exact point where institutional ownership should attach.

Final lock:

A school cannot authorize child value conversion after notice, suppress the protective instincts that would interrupt the pathway, avoid pathway naming when harm returns, assign adult autonomy to female children, and then deny ownership of the pathway.

Final seal:

No institutional ownership = no lawful child pathway.

No pathway ownership after harm returns = child exploitation by abandonment.

Child exploitation = child exploitation.